

21STCV46742 21STCV46742

County: los-angeles

Division: Civil Law and Motion

Department: 507

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Case Number: 21STCV46742 Hearing Date: August 3, 2026 Dept: 507

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 507

TENTATIVE RULING

JOSEPH LEVY,

Plaintiffs,

v.

TABER NASH, ET AL.

Defendants.

Case No: 21STCV46742

Hearing Date: August 3, 2026

Calendar

Number: 1

Cross-Complainant Taber Nash's Request for Entry

of Default Judgment against Cross-Defendants David Gonzalez, Blue J, Inc d/b/a

Petra Collision Center is REJECTED.

Background

Plaintiff delivered his 1955 Chevy truck to Defendants Taber Nash and Nash Motorcycle Co. for restoration and repair. Defendants sent the vehicle to a third-party for restoration and repair work without Plaintiff's knowledge or consent. Because Defendants failed to pay the third-party for its work, the vehicle was lost to the third party via mechanic's lien. Defendants agreed to pay Plaintiff for the vehicle but ultimately failed to do so.

On

December 22, 2021, Plaintiff filed a complaint against Defendants Taber Nash and Nash Motorcycle Co. for (1) conversion; (2) actionable deceit; (3) fraud in contract formation; (4) intentional misrepresentation; (5) breach of the covenant of good faith and fair dealing; (6) negligence; and (7) NIED.

On

February 7, 2022, Defendant Taber Nash filed a general denial. Defendant Taber Nash also filed a cross-complaint against Cross-Defendants David Gonzalez and Blue J, Inc. d/b/a Petra Collision Center for (1) indemnification; (2) apportionment of fault; and (3) declaratory relief (the "Cross-Complaint").

On

August 19, 2022, default was entered on the Cross-Complaint against Cross-Defendants David Gonzalez and Blue J, Inc. d/b/a Petra Collision Center.

On

September 9, 2023, defaulted was entered on the Complaint against Defendant Nash Motorcycle LLC aka Nash Motorcycle Co.

On

September 9, 2024, the Court entered judgment on the Complaint in Plaintiff's favor and against Defendants Taber Nash and defaulted Defendant Nash Motorcycle LLC in the amount of \$93,508.80. The Court entered an Amended Judgment on November 19, 2024 in the amount of \$98,593.44.

On

March 6, 2026, Cross-Complainant Taber Nash submitted a Request for Entry of

Court Judgment against David Gonzalez and Blue J, Inc d/ba/ Petra Collision Center. The Request for Entry of Court Judgment seeks entry of default judgment in the amount of the underlying Judgment on the Complaint entered on November 19, 2024, \$98,593.44.

Legal Standard

Judgment may be entered against a defendant by default where “the defendant has been served, other than by publication, and no answer, demurrer, [or other responsive paper] has been filed with the clerk of the court within the time specified in the summons” (Code Civ. Proc., § 585(b).) In such cases, the clerk shall enter default upon plaintiff’s written application and the plaintiff “thereafter may apply to the court for the relief demanded in the complaint.” (Ibid.)

A party seeking a default judgment on declarations must use the mandatory form CIV-100 and also file with the clerk (1) a brief summary of the case, (2) declarations or other admissible evidence in support, (3) interest computations as necessary, (4) a memorandum of costs and disbursements, (5) a declaration of non-military status, (6) a proposed form of judgment, (7) a dismissal of all parties against whom judgment is not sought, (8) exhibits as necessary, and (9) a request for attorneys’ fees, if they are sought. (Cal. R. Ct., Rule 3.1800(a).)

In general, a defendant’s default admits the truth of all well-pled allegations in a plaintiff’s complaint. (J.W. v. Watchtower Bible and Tract Society of New York, Inc. (2018) 29 Cal.App.5th 1142, 1166, fn. 5.) However, “[i]t is imperative in a default case that the trial court take the time to analyze the complaint at issue and ensure that the judgment sought is not in excess of or inconsistent with it. It is not in plaintiffs’ interest to be conservative in their demands, and without any opposing party to point out the excesses, it is the duty of the court to act as gatekeeper, ensuring that only the appropriate claims get through.” (Electronic Funds Solutions, LLC v. Murphy (2005) 134 Cal.App.4th 1161, 1179.)

Where a cause of action is stated in the complaint, plaintiff merely needs to introduce evidence establishing a prima facie case for damages. (Johnson v. Stanhiser (1999) 72 Cal.App.4th 357, 361 (trial court erroneously applied preponderance of evidence standard). That is, the defaulting defendant concedes the material factual allegations of the complaint. The trial court may not require presentation of evidence supporting the complaint’s allegations of liability. (Carlsen v. Koivumaki (2014) 227

Cal.App.4th 879, 899.) “The only evidentiary facts that have a place at a prove-up hearing are those concerning the damages alleged in the complaint. The damages, of course, may only be awarded for a well-pled cause of action, and to that end, the complaint must be examined.” (Id.)

Discussion

Cross-Complainant Taber Nash’s Request for Entry of Court Judgment is REJECTED without prejudice.

1. Cross-Complainant’s Cross-Complaint does not allege an amount of damages. Cross-Complainant can only recover on default judgment the amount of damages alleged in the Cross-Complaint. Because no amount of damages is alleged, Cross-Complainant must file and serve an amended complaint alleging an amount of damages. This amendment would “re-open” the default and allow the Cross-Defendants an opportunity to respond to the Amended Cross-Complaint. Based on the current Cross-Complaint, Cross-Complainant would not be able to recover any damages.

2. Cross-Complainant Taber Nash also failed to submit a default judgment package including documentation in support of the Request. Cross-Complainant must submit documents in compliance with California Rules of Court Rule 3.1800, including a declaration in support of the requested default judgment, a declaration of interest to the extent interest is requested.

3. Cross-Complainant’s Request for Entry of Court Judgment (Form CIV-100) is also defective because Cross-Defendant “Blue J, Inc. d/b/a Petra Collision Center” is incorrectly listed as “Blue J,Inc” in Item 1(d). Cross-Defendant’s name must match its name listed in the Cross-Complaint and the default exactly, including spaces and periods.

4. Item 1(c) is also partially completed even though it need only be completed to request entry of default. Default was already entered against the Cross-Defendants.